



Notification Waiver Determination

NPM Capital – AmbaFlex Group

Acquisition	NPM Investments 43 B.V. (NPM), a subsidiary of NPM Capital N.V. (NPM Capital), applied for a notification waiver in respect of its proposed acquisition of 100% of the share capital of the AmbaFlex group (AmbaFlex) by acquiring its current holding entity, Helix Holdco B.V. (Helix), from Helion C.V. (Helion) and WPAI-I B.V., as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	3 August 2026

Parties to the Acquisition	NPM Capital is a financial investor with portfolio companies across a broad range of industries and is based in the Netherlands. Its parent group, SHV Holdings N.V. (SHV), is a family-owned, decentralised company active in a broad range of industries through seven entities (including NPM Capital). The target, AmbaFlex, is a manufacturer of specialty conveying and accumulation solutions for the intralogistics market and is based in the Netherlands. Its product portfolio comprises of three main product lines: spiral conveyors for vertical product elevation; horizontal and vertical accumulation solutions; and flexible horizontal conveying solutions. AmbaFlex also provides spare parts, maintenance and servicing.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and certain publicly available information, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. there is no horizontal overlap between NPM Capital or SHV (including their connected entities) and AmbaFlex in the supply of intralogistics conveying equipment, spiral conveyors, accumulation solutions or similar products in Australia b. there is a low risk of foreclosure or other concerning vertical or conglomerate effects resulting from exclusionary

	conduct, bundling or tying of products or services post-acquisition. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
--	--

**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**